

server, or information presented in affidavits or other filings in the Receivership Action which Plaintiff disputed as untruthful, all relate to matters Plaintiff either raised and litigated or matters that he could have raised and litigated in the Receivership Action, as shown by the allegations of the FAC summarized above (*see also* Def. RJN Exhs. 1-4), and in the 2023 Ho Action (RJN Exhs. 5, 8, 10 [including RJN ¶¶ 2-4], 11) if Plaintiff had filed a timely government claim. Neither the FAC factual allegations nor the records of the Receivership Action subject to judicial notice show that Plaintiff was not apprised of the existence of the petition, the proposed receivership, and the events of the receivership, or that Plaintiff did not have an opportunity to present his disputes in the Sacramento Superior Court or by appeal of any adverse ruling, including any disputes regarding perjury, fraud, bribery or other illegalities allegedly occurring during the Receivership Action. There are no allegations or matters subject to judicial notice that indicate Plaintiff's 2023 Ho Action was dismissed because of any extrinsic fraud rather than because of Plaintiff's own negligence in not timely filing a government claim, a judgment which Plaintiff also could have sought relief from by appeal but which appears to be final. The allegations of the FAC and matters subject to judicial notice show that Plaintiff is seeking to relitigate the claims he made in the Receivership Action and 2023 Ho Action by collateral attack to try to obtain a different result, which is not a basis for application of the extrinsic fraud exception.

The City's demurrer to the FAC is therefore **sustained** on these grounds, **without leave to amend**.

C. Court Does Not Need to Reach the City's Immunity Arguments

The City raises arguments in the demurrer regarding multiple grounds for the City's immunity from liability for whatever acts or omissions Plaintiff alleges code enforcement, the law firm, or the Receiver allegedly committed. The Court does not need to reach those additional grounds for sustaining the demurrer.

D. No Leave to Amend

Plaintiff has been given the opportunity to try to amend his complaint to state claims against the City. This opportunity is in addition to the opportunities Plaintiff had to contest the receivership and alleged improprieties of the code enforcement officials, the law firm, and the Receiver in the Receivership Action, and again in the 2023 Ho Action. The Court rejects Plaintiff's contentions that the extrinsic fraud exception applies for the reasons stated. Plaintiff has not demonstrated that he has the ability to amend the FAC to allege additional facts to state a cause of action against the City in light of the facts which show his claims are barred by *res judicata* for the reasons stated.

3. 9:00 AM CASE NUMBER: C23-00279
CASE NAME: ATCHISON VILLAGE VS. MANDEL
***HEARING ON MOTION IN RE: ORDERS SETTING ASIDE DISMISSAL AND AMENDING COURT ORDER**
OF 5/21/25 IMPOSING SANCTIONS
FILED BY: ATCHISON VILLAGE MUTUAL HOMES CORPORATION
TENTATIVE RULING:

Plaintiff Atchison Village Mutual Homes Corporation's "Motion for Orders: (1) Setting Aside Plaintiff's Dismissal of this Action (C.C.P. § 473) and (2) Amending Court Order of 05/21/25 Imposing Discovery Sanctions" is **denied**.

Background

Plaintiff Atchison Village Mutual Homes Corporation is a 450-unit housing complex in Richmond, California. The corporation is cooperatively owned and managed by its members for the purpose of providing housing on a nonprofit basis.

Atchison retained attorney Andrew V. Gabriel to prosecute a claim against an AVMHC resident, Defendant Phyllis Mandel, alleging that her negligence caused water damage to her unit and to a neighboring unit. This lawsuit was filed by Atchison against Ms. Mandel on February 7, 2023. Ms. Mandel answered on April 4, 2023.

On January 26, 2024, Ms. Mandel served four sets of written discovery on Atchison, including form and specially prepared interrogatories, requests for admission, and requests for production. Mr. Gabriel asked Atchison for the information and documents needed to answer the discovery and Atchison provided the requested information and documents. On April 12, 2024, Attorney Gabriel served unverified and untimely responses to the discovery requests, thereby waiving objections to the discovery.

On February 14, 2025, Ms. Mandel served four motions to compel further discovery responses and for sanctions against Attorney Gabriel and Atchison, jointly and severally. Attorney Gabriel purportedly did not inform Atchison that Ms. Mandel had filed the motions. Attorney Gabriel did not file any opposition to the motions on his client's behalf.

The discovery motions were heard on May 21, 2025. The Court's tentative ruling awarded over \$30,000 in sanctions against Atchison and Attorney Gabriel, jointly and severally. Though Atchison had not filed an opposition, Attorney Gabriel appeared at the hearing. Following his argument, the Court amended the tentative ruling to award sanctions only against Atchison. The discovery motion hearing was not reported. However, Atchison claims that the only logical explanation for the change in the tentative ruling was that counsel appeared at the hearing and blamed Atchison for his own failures.

On June 4, 2025, the Court entered its order compelling further discovery responses and the payment of sanctions no later than June 13, 2025. Instead of complying with the order, on June 6, Atchison filed a request for dismissal of this action without prejudice. Attorney Gabriel stated in an email to defense counsel "[w]e intend to dismiss the action without prejudice, rendering further discovery moot at this

point.”

On October 6, 2025, Defendant filed her motion seeking \$94,218 in attorney fees as the prevailing party under CCP section 1032 and section 15 of the Atchison Mutual Ownership Contract. Atchison claims that Attorney Gabriel did not tell the Board about the pending attorney fee motion, and a Board member instead discovered the motion by reviewing the docket.

On October 28, 2025, Atchison filed this motion for discretionary relief under CCP section 473(b), requesting two orders: (1) an order setting aside the dismissal; and (2) an order amending the discovery orders to reflect that Attorney Gabriel is solely responsible for the sanctions (which Defendant has now collected from Atchison). Atchison claims that Attorney Gabriel lacked authority to dismiss the case if doing so would expose it to more than a *de minimis* amount of attorney fees and/or costs. Atchison also argues that discovery sanctions should be imposed exclusively on Attorney Gabriel for errors that had nothing to do with Atchison.

Analysis

Relief from Dismissal

A court may set aside any “judgment, dismissal, order, or other proceeding,” including a voluntary dismissal, that was entered due to mistake, inadvertence, surprise, or excusable neglect. (Code of Civil Procedure (CCP) § 473, subd. (b); *Zamora v. Clayborn Group, Inc.* (2002) 28 Cal.4th 249, 254-255 [noting the statutory language does not limit discretionary relief to “involuntary judgments or dismissals”]; *Jackson v. Kaiser Found. Hosps., Inc.* (2019) 32 Cal.App.5th 166, 173-177.) “Application for this relief shall . . . be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (CCP § 473, subd. (b).)

However, section 473, subdivision (b)’s discretionary provision applies “to cases involving attorney mistake only when the mistake is excusable.” (See *Jackson, supra*, 32 Cal.App.5th at 174 [citing *Zamora, supra*, 28 Cal.4th at 258].) “[A]ttorney conduct falling below the professional standard of care is not excusable. To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice.” (*Id.*, at p. 174.)

Here, Atchison Board Member Kevin Cronin states in his declaration that Attorney Gabriel did not oppose the discovery motions on Atchison’s behalf, did not consult with Atchison’s Board about whether to oppose the motions, and did not share the Court’s tentative ruling imposing discovery sanctions. Although the tentative ruling imposed sanctions jointly against Atchison and counsel, the final order imposed sanctions only against Atchison after the hearing, and Mr. Cronin believes this change resulted from Attorney Gabriel attributing responsibility for the discovery failures to Atchison. (Cronin Decl., ¶¶ 4-15.)

Mr. Cronin states that before the hearing on the discovery motions, Atchison’s Board had authorized Attorney Gabriel to pursue settlement or, if necessary, a dismissal in exchange for a mutual waiver of costs/fees. On May 20, 2025, Attorney Gabriel advised that Ms. Mandel demanded \$75,000 to settle the case, and he recommended dismissing the case without prejudice, stating that Atchison would owe only modest costs and no attorney fees. Mr. Cronin says the Board authorized Attorney Gabriel to dismiss the case in reliance on that advice. Had the Board been aware of the sanctions award or potential fee exposure, it would not have authorized the dismissal. (Cronin Decl., ¶¶ 16-20.)

Atchison claims its misunderstanding was based on Attorney Gabriel's error in that counsel "had assured the Board that the dismissal would not expose it to a risk of having to pay Ms. Mandel's attorney's fees" and "did not tell the Board that the unilateral dismissal would leave it responsible for over \$30,000 in discovery sanctions." (Mot., p. 5:13-16.)

"[M]onetary [discovery] sanction orders are enforceable through the execution of judgment laws. [Citation.] These orders have the force and effect of a money judgment, and are immediately enforceable through execution, except to the extent the trial court may order a stay of the sanction." (*Newland v. Superior Court* (1995) 40 Cal.App.4th 608, 615; see also, *Jones v. Otero* (1984) 156 Cal.App.3d 754, 759.) Therefore, the sanctions order was automatically enforceable when issued. The dismissal may have eliminated the need to serve responses to the discovery, but it did not eliminate the requirement to pay sanctions. The dismissal also triggered Ms. Mandel's right to claim attorney fees as the prevailing party on Atchison's cause of action for negligence. (As the attorney fee order notes, Atchison's own complaint had asserted that such fees were available on that claim.)

The Court has reviewed Atchison's authorities cited for the proposition that the dismissal was unauthorized and therefore void but finds them inapposite. In *Romadka v. Hoge* (1991) 232 Cal.App.3d 1231 for example, the plaintiff obtained a default judgment against the defendant but failed to timely serve it, subjecting the case to mandatory dismissal without prejudice. (*Romadka, supra*, 232 Cal.App.3d at p. 1234.) Within the period of limitations, the plaintiffs filed a new action and authorized their attorney to dismiss the original action without prejudice. (*Ibid.*) The plaintiffs' counsel completed the request for dismissal form but mistakenly checked the "with prejudice" box. (*Ibid.*) Realizing the error, the defendant raised a defense of res judicata in the second case. (*Ibid.*) The plaintiffs then moved to vacate their dismissal, and the trial court denied their motion. (*Ibid.*) Plaintiffs appealed, claiming their dismissal was void under CCP section 473(d). (*Romadka, supra*, at p. 1235.) The appellate court reversed the trial court's order denying the motion to vacate, holding that the "attorney's lack of authority invalidated her dismissal" as void. (*Id.* at p. 1237.) In doing so, it relied on cases standing for the proposition that an attorney's unauthorized disposition of a client's substantive rights is invalid and the resulting judgment or dismissal is void. (See, e.g., *Linsk v. Linsk* (1969) 70 Cal.2d 272, 276 [counsel entered into a stipulation that the action could be decided on record made in prior trial over client's objection]; *Whittier Union High Sch. Dist. v. Superior Court* (1977) 66 Cal.App.3d 504, 506 [counsel forged clients' signatures and entered into settlement agreement without their knowledge].)

Here, Atchison authorized a dismissal of the case after consulting with counsel. Atchison contends, essentially, that it relied on incorrect legal advice concerning the legal effect of the dismissal. Atchison cites no case establishing that a voluntary dismissal based on erroneous legal advice is void or warrants relief under CCP section 473(b).

The Court finds for purposes of this motion that former counsel's errors were not excusable. Therefore, relief under the discretionary provision of CCP section 473(b) is not available to Atchison.

Motion to Amend the Sanctions Order

Even if the court were inclined to set aside the dismissal, it would not be inclined to modify the sanctions order. Mr. Cronin's declaration states that Atchison complied with its discovery obligations by providing Attorney Gabriel with all requested information and documents, so any discovery violations

arose from counsel's failures, and not Atchison's.

Atchison's showing amounts to a claim of attorney malpractice. CCP section 473(b) does not provide relief for professional negligence, and Atchison's recourse, if any, is against its former counsel. Additionally, as Defendant points out, Atchison's request to modify the sanctions order amounts to an untimely request for reconsideration, which had to have been filed within ten days of service of the Court's order and based on "new or different facts, circumstances, or law." (CCP § 1008(a).)

Atchison missed this jurisdictional deadline by several months, and it offers no facts that were not available at the time of the discovery hearing. The requirements for reconsideration are therefore not met.

Disposition

Based on the foregoing, the motion is **denied**.

4. 9:00 AM CASE NUMBER: C23-02289
CASE NAME: PROGRESSIVE WEST INSURANCE COMPANY VS. CRAIG CROSBY
HEARING ON SUMMARY MOTION
FILED BY:
TENTATIVE RULING:

Defendant Craig Crosby's Motion for Summary Judgment on Plaintiff Progressive West Insurance Company's Complaint is **granted**.

Background

Progressive issued a motorcycle insurance policy, policy number 44055053, to Mr. Crosby for many years, which was renewed annually (the "Policy"). (Separate Statement in Support of Motion for Summary Judgment ("SS") A11.) The Policy provided multiple coverages, including uninsured and underinsured motorist coverage. (Decl. of Crosby, ¶ 3.)

In late 2022, Mr. Crosby's wife gave him a golf cart as a gift (the "Golf Cart"). (Decl. of Crosby, ¶ 2.) Mr. Crosby planned to use the Golf Cart at his local golf course. (Decl. of Crosby, ¶¶ 2, 3.) The golf course required all golf carts to carry liability insurance. (Id.) To comply with this requirement, Mr. Crosby called Progressive on January 2, 2023 to add the Golf Cart to his existing policy. (SS B3.) The Progressive agent informed Mr. Crosby that the Golf Cart would need to be insured under his motorcycle policy. (SS B4.)

During that call, Progressive asked Mr. Crosby a series of questions about the Golf Cart. The agent asked whether it would be registered for street use, to which Mr. Crosby responded that it would not be. (SS B5.) Progressive asked whether it would exceed 20 miles per hour, and Mr. Crosby stated that it went approximately 15 miles per hour "tops" and that it was electric. (SS B5, B7.) When asked whether it had a VIN, Mr. Crosby explained that he had searched for one and had been unable to find it. (Decl. of Schwartz, Exh. A, p. 16, lines 19–28.) When asked, "so we don't know if we have a state assigned VIN number, right?", Mr. Crosby replied, "Well it's not street legal so I highly doubt a VIN number." (SS B8.) He informed Progressive that the Golf Cart was a used 2013 EZ Go TXT golf cart. (SS B5.)